

Court No. - 29

Case :- WRIT - C No. - 43318 of 2024

Petitioner :- Sharmila Begum

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Donadi Ramesh, J.

Grievance of the petitioner is in respect of certain recovery initiated against her on account of non-payment of electrical dues.

Learned counsel for the respondents points out that the nature of dispute raised by the petitioner before this court can more appropriately be examined by the competent authority if she approaches the competent forum in terms of clause 6.5 of U.P. Electricity Supply Code, 2005.

In that view of the matter, we permit the petitioner to approach the second respondent in terms of clause 6.5 of U.P. Electricity Supply Code, 2005 and it goes without saying that in the event such a claim is raised, within a week from today, alongwith all materials the competent authority shall look into the matter and shall pass an appropriate reasoned order within a period of six weeks.

In the event petitioner approaches the competent authority within a week from today the authorities shall act only in terms of determination made on the petitioner's application and no coercive action would be taken against the petitioner till its disposal.

With above observation/direction, the writ petition stands disposed of.

Order Date :- 3.1.2025

RA